

HOUSE No. 1357

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to insurer responsibility to the operating budgets of health care oversight entities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael S. Day</i>	<i>31st Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 1357

By Representative Day of Stoneham, a petition (accompanied by bill, House, No. 1357) of Michael S. Day relative to insurer responsibility to the operating budgets of health care oversight entities. Health Care Financing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to insurer responsibility to the operating budgets of health care oversight entities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6 of chapter 6D of the General Laws is hereby amended by striking
2 clause (b) and replacing it with following:-

3 (b) Each acute hospital, ambulatory surgical center, non-hospital provider organization,
4 pharmaceutical manufacturing company, pharmacy benefit manager and surcharge payor shall
5 pay to the commonwealth an amount for the estimated expenses of the commission.

6 and is further amended in said section and chapter by adding the following clause:-

7 (g) The assessed amount for surcharge payors shall be not less than 30 per cent nor more
8 than 40 per cent of the amount appropriated by the general court for the expenses of the
9 commission minus amounts collected from: (i) filing fees; (ii) fees and charges generated by the
10 commission; and (iii) federal matching revenues received for these expenses or received
11 retroactively for expenses of predecessor agencies. Surcharge payors amount of the estimated
12 expense of the commission may be assessed and transferred in accordance with sections 64 and

66 of chapter 118E; provided further that such amount shall not be less than the health policy commission revenue amount.

SECTION 2. Section 7 of chapter 12C of the General Laws is hereby amended by striking clause (b) and replacing it with the following:-

(b) Each acute hospital, ambulatory surgical center, non-hospital provider organization, pharmaceutical manufacturing company, pharmacy benefit manager and surcharge payor shall pay to the commonwealth an amount for the estimated expenses of the center and for the other purposes described in this chapter which shall include any transfer made to the Community Hospital Reinvestment Trust Fund established in section 2TTTT of chapter 29.

and is further amended in said section and chapter adding the following clause:-

(g) The assessed amount for surcharge payors shall be not less than 30 per cent nor more than 40 per cent of the amount appropriated by the general court for the expenses of the center and for the other purposes described in this chapter which shall include any transfer made to the Community Hospital Reinvestment Trust Fund established in section 2TTTT of chapter 29 minus amounts collected from: (i) filing fees; (ii) fees and charges generated by the center's publication or dissemination of reports and information; and (iii) federal matching revenues received for these expenses or received retroactively for expenses of predecessor agencies. Surcharge payors amount of the estimated expense of the commission may be assessed and transferred in accordance with sections 64 and 66 of chapter 118E; provided further that such amount shall not be less than the center for health information and analysis revenue amount.